

judgment poses the same threat to independent judicial decisionmaking whether it be labeled "damages" of \$7,691.09 or "attorney's fees" in that amount. Moreover, as was held a century and a half ago, an "action before one Judge for what is done by another . . . [is a] case . . . against the independence of the Judges." *Taaffe v. Downes*, reprinted in footnote in *Calder v. Halket*, 13 Eng. Rep. 12, 18, n. (a) (P. C. 1840). The burdens of having to defend such a suit are identical in character and degree, whether the suit be for damages or prospective relief. The holding of the Court today subordinates realities to labels. The rationale of the common-law immunity cases refutes the distinction drawn by the Court.

I

Since 1869, this Court consistently has held that judges are absolutely immune from civil suits for damages. See, e. g., *Stump v. Sparkman*, 435 U. S. 349 (1978); *Pierson v. Ray*, 386 U. S. 547 (1967); *Bradley v. Fisher*, 13 Wall. 335 (1872); *Randall v. Brigham*, 7 Wall. 523 (1869). We have had no occasion, however, to determine whether judicial immunity bars a § 1983 suit for prospective relief. See *Supreme Court of Virginia v. Consumers Union of United States, Inc.*, 446 U. S. 719, 735 (1980).¹ It is clear that Congress did not limit the

¹ Respondents' argument that this Court has "at least implied that judicial immunity did not bar [declaratory or injunctive] relief" misreads the precedents. Brief for Respondents 12. Respondents rely on the cases cited in note 14 of the Court's opinion in *Consumers Union*, 446 U. S., at 735. None of those cases addressed the issue of judicial immunity from prospective relief. In *Mitchum v. Foster*, 407 U. S. 225 (1972), appellant filed a § 1983 claim against state judicial and law enforcement officials seeking to enjoin state-court proceedings under an allegedly unconstitutional state law. The only issue considered by this Court was whether § 1983 was an authorized exception to the anti-injunction statute that allowed federal courts to enjoin state-court proceedings. In *Boyle v. Landry*, 401 U. S. 77 (1971), appellees filed a § 1983 claim against state judicial and law enforcement officials seeking to enjoin the enforcement of state statutes on the ground that such enforcement was used to harass and deter appellees from exercising their constitutional rights. This Court found that appel-